

SYLLABUS FOR THE 2026 BAR EXAMINATIONS

POLITICAL AND PUBLIC INTERNATIONAL LAW (15%)

NOTE: Only laws, rules, issuances, and jurisprudence pertinent to these topics as of **June 30, 2025** shall be considered examinable materials within the coverage of the 2026 Bar Examinations.

I. BASIC CONCEPTS

- A. Nature, Concept, and Interpretation of a Constitution
- B. Amendment and Revision
- C. Declaration of Principles and State Policies
- D. Sovereignty
- E. State Immunity
- F. Separation of Powers
- G. Checks and Balances
- H. Delegation of Powers
- I. Fundamental Powers of the State
 - 1. Police Power
 - 2. Eminent Domain (in relation to Republic Act [R.A.] No. 10752)
 - 3. Taxation

II. NATIONAL TERRITORY

- A. Scope (Terrestrial, Fluvial, and Aerial Domains)
- B. Archipelagic Doctrine
- C. Maritime Zones

III. CITIZENSHIP

- A. Who are Filipino Citizens
- B. Modes of Acquiring Citizenship
- C. Natural-born and Naturalized Citizens
- D. Loss and Re-acquisition of Philippine Citizenship
 - 1. R.A. No. 9225
- E. Dual Citizenship and Dual Allegiance

IV. LEGISLATIVE DEPARTMENT

- A. Legislative Power
 - 1. Scope and Limitations

2. Principle of Non-delegability; Exceptions
3. Initiative and Referendum
4. Legislative Inquiries and Oversight Functions
5. Power of Impeachment
6. Limitations on Legislative Power
7. Limitations on Revenue, Appropriations, and Tariff
8. Presidential Veto and Congressional Override
9. Appropriation and Realignment
- B. Chambers of Congress; Composition; Qualifications
 1. Senate
 2. House of Representatives
 - a. Apportionment of Legislative Districts
 - b. Party-list System
- C. Declaration of the Existence of a State of War
- D. Legislative Privileges, Inhibitions, and Disqualifications
- E. Quorum and Voting Majorities
- F. Discipline of Members
- G. Lawmaking Process
- H. Commission on Appointments

V. EXECUTIVE DEPARTMENT

- A. Qualifications, Election, and Term of the President and Vice-President
- B. Privileges, Inhibitions, and Disqualifications
 1. Presidential Immunity
 2. Executive Privilege
- C. Powers of the President
 1. General Executive and Administrative Powers
 2. Power of Appointment
 - a. Process of Confirmation by the Commission on Appointments
 - b. Bypassed Appointments and their Effects
 - c. Appointments by an Acting President
 - d. Scope of Midnight Appointments
 - e. *Ad Interim* Appointments
 - f. Disciplinary Power (Suspension and Removal)
 3. Power of Control and Supervision
 - a. Doctrine of Qualified Political Agency
 - b. Executive Departments and Offices
 - c. Local Government Units (LGUs)
 4. Emergency Powers
 5. Commander-in-Chief Powers
 - a. Calling Out Power
 - b. Declaration of Martial Law and Suspension of the Privilege of the Writ of *Habeas Corpus*; Extension and Revocation
 6. Pardoning Power
 - a. Scope and Limitations

- b. Forms of Executive Clemency
- 7. Diplomatic Powers
 - a. In General
 - b. Contracting or Guaranteeing Foreign Loans
 - c. Entry into Treaties or International Agreements; Withdrawal and Termination
- 8. Powers Relative to Appropriation Measures
- 9. Delegated Powers
- 10. Residual Powers
- 11. Veto Powers
- D. Rules of Succession

VI. JUDICIAL DEPARTMENT

- A. Concept of Judicial Power
- B. Judicial Review
 - 1. Requisites
 - 2. Political Question Doctrine
 - 3. Moot Questions
 - 4. Operative Fact Doctrine
- C. Judicial Independence and Fiscal Autonomy
- D. Appointments to the Judiciary
 - 1. Qualifications of Members
 - 2. Judicial and Bar Council
 - a. Composition
 - b. Powers
- E. The Supreme Court
 - 1. Composition, Powers, and Functions
 - a. Power to Promulgate Rules
 - 2. Original and Appellate Jurisdiction
 - 3. *En Banc* and Division Cases
 - 4. Administrative Supervision over Lower Courts

VII. CONSTITUTIONAL COMMISSIONS

- A. Constitutional Safeguards to Ensure Independence
- B. Common Provisions
- C. Powers, Functions, and Jurisdiction
- D. Composition and Qualifications of Members
- E. Prohibited Offices and Interests

VIII. CONSTITUTIONAL RIGHTS

- A. Due Process
 - 1. Procedural and Substantive

- 2. Void-for-Vagueness
 - 3. Judicial and Administrative Due Process
- B. Equal Protection
 - 1. Requisites for Valid Classification
 - 2. Standards of Judicial Review
 - a. Rational Basis Test
 - b. Strict Scrutiny Test
 - c. Intermediate Scrutiny Test
- C. Arrests, Searches, and Seizures
 - 1. Requisites of a Valid Warrant
 - 2. Warrantless Arrests and Searches
 - 3. Exclusionary Rule
- D. Privacy of Communications and Correspondence
 - 1. Zones of Privacy
 - 2. Exclusionary Rule
 - 3. Data Privacy – R.A. No. 10173
 - a. Personal v. Sensitive Personal Information
 - b. Scope
 - c. Processing of Personal and Sensitive Personal Information; Lawful Basis
 - d. General Data Privacy Principles
 - e. Rights of the Data Subject
- E. Freedom of Speech and Expression
 - 1. Prior Restraint and Subsequent Punishment
 - 2. Content-based and Content-neutral Regulations
 - 3. Facial Challenges and Overbreadth Doctrine
 - 4. Protected v. Unprotected Speech
 - 5. State Regulation of Different Types of Mass Media
- F. Freedom of Religion
 - 1. Non-establishment and Free Exercise Clauses
- G. Liberty of Abode and Right to Travel
 - 1. Watchlist and Hold Departure Orders
- H. Right to Information
 - 1. Executive Order No. 2, s. 2016 on Freedom of Information
 - 2. R.A. No. 11032 (Ease of Doing Business Act)
- I. Right to Association
- J. Non-impairment of Contracts
- K. Free Access to Courts and Adequate Legal Assistance
- L. Custodial Investigation
 - 1. Requisites of a Valid Waiver and the Exclusionary Rule
 - 2. Rights of Persons Arrested, Detained, or Under Custodial Investigation under R.A. No. 7438
- M. Rights of the Accused

- N. Right to Speedy Trial and Speedy Disposition of Cases
- O. Right Against Self-incrimination
- P. Right Against Double Jeopardy
- Q. Right Against Involuntary Servitude
- R. Right Against Excessive Fines, and Cruel and Inhuman Punishments
- S. Non-imprisonment for Debts
- T. *Ex Post Facto* Laws and Bills of Attainder
- U. Writs of *Habeas Corpus*, *Kalikasan*, *Habeas Data*, and *Amparo*
- V. Social Justice and Human Rights
- W. Economic, Social, and Cultural Rights
- X. Academic Freedom

IX. NATIONAL ECONOMY AND PATRIMONY

- A. Regalian Doctrine – *Republic v. Pasig Rizal Co. Inc.*, G.R. No. 213207, February 15, 2022; all Opinions
- B. Public Trust Doctrine – R.A. No. 11659 (New Public Service Act)
- C. Nationality and Citizenship Requirement Provisions
- D. Exploration, Development, and Utilization of Natural Resources
- E. Acquisition, Ownership, and Transfer of Public and Private Lands
- F. Ancestral Domain – R.A. No. 8371, Chapters I-III

X. ADMINISTRATIVE LAW

- A. General Principles
- B. Administrative Agencies
- C. Powers of Administrative Agencies
 - 1. Quasi-legislative or Rule-making Power
 - a. Kinds of Administrative Rules and Regulations
 - b. Requisites for Validity
 - 2. Quasi-judicial or Adjudicatory Power
 - a. Administrative Due Process
 - b. Administrative Appeal and Review
 - c. Administrative *Res Judicata*
 - 3. Fact-finding, Investigative, Licensing, and Rate-fixing Powers
- D. Judicial Recourse and Review
 - 1. Primary Jurisdiction
 - 2. Exhaustion of Administrative Remedies
 - 3. Finality of Administrative Action

XI. LAW ON PUBLIC OFFICERS

- A. General Principles
- B. Modes of Acquiring Title to Public Office
- C. Modes and Kinds of Appointment

- D. Eligibility and Qualification Requirements
- E. Disabilities and Inhibitions of Public Officers
- F. Powers and Duties of Public Officers
- G. Rights of Public Officers
- H. Immunity of Public Officers
- I. *De Facto* and *De Jure* Officers
- J. Termination of Official Relation
- K. The Civil Service
 - 1. Scope
 - 2. Appointments to the Civil Service
 - 3. Personnel Actions
- L. Accountability of Public Officers
 - 1. Types of Accountability
 - 2. Discipline
 - a. Grounds
 - b. Jurisdiction
 - c. Dismissal, Preventive Suspension, Reinstatement, and Back Salaries
 - d. Condonation Doctrine
 - 3. Impeachment and *Quo Warranto*
 - 4. Ombudsman and Special Prosecutor – 1987 Constitution, Art. XI in relation to R.A. No. 6770
 - a. Functions
 - b. Judicial Review in Administrative Proceedings
 - c. Judicial Review in Penal Proceedings
 - 5. Sandiganbayan

XII. ELECTION LAW

- A. Suffrage
 - 1. Qualifications and Disqualification of Voters
 - 2. Registration and Deactivation of Voters
 - 3. Inclusion and Exclusion Proceedings
 - 4. Local and Overseas Absentee Voting
 - 5. Detainee Voting
- B. Candidacy
 - 1. Qualifications and Disqualifications of Candidates
 - 2. Filing of Certificates of Candidacy
 - a. Effect of Filing
 - b. Duties of the Commission on Elections (COMELEC)
 - 3. Ministerial Duty of COMELEC to Receive Certificates of Candidacy
 - 4. Eligibility and Material Misrepresentation
 - 5. Withdrawal of Certificates of Candidacy

6. Effects of Denial and Cancellation of Certificate of Candidacy due to Material Misrepresentation
7. Substitution of Candidates
8. Nuisance Candidates and Effects of Declaration of Nuisance Candidacy
9. Disqualification of Candidates; Effects
- C. Campaign
 1. Premature Campaigning
 2. Prohibited Contributions
 3. Lawful and Prohibited Election Propaganda
 4. Limitations on Expenses
 5. Statement of Contributions and Expenses
- D. Remedies and Jurisdiction
 1. Petition to Deny Due Course or Cancel a Certificate of Candidacy
 2. Petition for Disqualification
 3. Failure of Election; Call for Special Election
 4. Pre-proclamation Controversy
 5. Election Protest
 6. *Quo Warranto*
 7. Recall
- E. Electoral Tribunals
- F. Prosecution of Election Offenses (Exclude: Penal Provisions)

XIII. LOCAL GOVERNMENTS

- A. Principles of Local Autonomy
- B. Requisites for Creation, Conversion, Division, Merger, or Dissolution
- C. Autonomous Regions and their Relation to the National Government
- D. Local Government Units
 1. Powers
 - a. Police Power
 - b. Eminent Domain
 - c. Taxation
 - d. Closure and Opening of Roads
 - e. Local Legislation
 - f. Corporate Powers
 - g. *Ultra Vires* Acts
 2. Liability
 3. Settlement of Boundary Disputes
 4. Vacancies and Succession of Local Officials
 5. Recall
 6. Term Limits
- E. Local Elective and Appointive Officials

XIV. PUBLIC INTERNATIONAL LAW

A. Sources of International Law

1. Statute of the International Court of Justice
2. Effect of United Nations Declarations and Security Council Resolutions
3. Effect of Actions of Organs of International Organizations Created by Treaty

B. Sources of International Legal Obligation

1. Treaties
2. Customary International Law
3. Principles of Law

C. Subjects of International Law

D. Relationship Between International and Domestic Law

E. Jurisdiction of States

1. Basis

- a. Territoriality Principle
- b. Nationality Principle and Statelessness
- c. Protective Principle
- d. Universality Principle
- e. Passive Personality Principle

2. Exemptions

- a. Act of State Doctrine
- b. International Organizations and their Officers
- c. Diplomatic and Consular Law

F. General Principles of Treaty Law

G. Doctrine of State Responsibility

H. Treatment of Aliens

1. Extradition

- a. Fundamental Principles
- b. Procedure
- c. Distinguished from Deportation

I. International Human Rights Law

1. Universal Declaration of Human Rights
2. International Covenant on Civil and Political Rights
3. International Covenant on Economic, Social, and Cultural Rights

J. International Humanitarian Law

1. Categories of Armed Conflicts

- a. International Armed Conflicts
- b. Internal or Non-international Armed Conflict
- c. War of National Liberation
- d. Dispute Resolution

2. War Crimes, Genocide, and Other Crimes Against Humanity

3. The Role of the International Criminal Court

K. Dispute Resolution

1. International Court of Justice

- 2. Permanent Court of Arbitration
- 3. Peaceful Settlement of International Disputes
- 4. Use of Force Short of War
- 5. War and Neutrality
 - a. Treatment of Civilians
 - b. Prisoners of War
- L. Law of the Sea
 - 1. International Tribunal for the Law of the Sea
 - 2. Freedom of Navigation
 - 3. Maritime and Territorial Disputes
- M. International Environmental Law
 - 1. Principle 21 of the Stockholm Declaration
 - 2. Precautionary Principle

— NOTHING FOLLOWS —